

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO. 12363N26Q4039	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☐ NEGOTIATED (RFP)	3. DATE ISSUED 04/16/2026	PAGE	OF	PAGES
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IMPORTANT -- The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.		5. REQUISITION/PURCHASE REQUEST NO. 1155835	6. PROJECT NO.
7. ISSUED BY USDA-FS STEWARDSHIP CONTRACTING BR 1400 INDEPENDENCE AVE SW MS-1138 WASHINGTON DC 20250-1138	CODE 363N	8. ADDRESS OFFER TO Bid Bond is acceptable for proposals valued at \$150,000.00 and greater. Payment bonds required for anything over \$ 35,000.00	
9. FOR INFORMATION CALL: 	a. NAME CYNTHIA HORWITZ		b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS)

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder."

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying no., date)

Bid Bond is required for proposals over \$150,000
 Payment and Performance bonds are required for construction projects over \$35,000.
 Payment for bond premiums in accordance with Clause 52.232-5,
 Payments under Fixed-Price Construction Contracts, shall not be in addition to the contract price; include bond payments under 151.01 Mobilization.

11. The Contractor shall begin performance within <u>0</u> calendar days and complete it within <u>120</u> calendar days after receiving ☐ award, ☒ notice to proceed. The performance period is ☒ mandatory ☐ negotiable. (See _____.)	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.)	12b. CALENDAR DAYS 7

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1100 (hour) local time
05/13/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 0 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)

15. TELEPHONE NO. (Include area code)

16. REMITTANCE ADDRESS (Include only if different than item 14.)

CODE

FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in item 13d. Failure to insert any number means the offeror accepts the minimum in item 13d.)

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGEMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)

20b. SIGNATURE

20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT		23. ACCOUNTING AND APPROPRIATION DATA	
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)		ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY USDA-FS STEWARDSHIP CONTRACTING BR 1400 INDEPENDENCE AVE SW MS-1138 WASHINGTON DC 20250-1138		27. PAYMENT WILL BE MADE BY	

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE☐ 28. NEGOTIATED AGREEMENT(Contractor is required to sign this document and return 1 copies to issuing office.)

Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD

(Contractor is not required to sign this document.)

Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)

31a. NAME OF CONTRACTING OFFICER (Type or print)

CYNTHIA G. HORWITZ

30b. SIGNATURE

30c. DATE

31b. UNITED STATES OF AMERICA

31c. DATE

BY

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0001	Offers due to cynthia.horwitz@usda.gov by May 13, 2026 at 11:00 am Mountain Time. Delivery: 09/30/2026 Delivery Location Code: 8191 PRESCOTT NATIONAL FOREST 344 SOUTH CORTEZ PRESCOTT AZ 86303 US Period of Performance: 05/18/2026 to 09/30/2026 NFSR 52 (Senator Highway) Road Maintenance and Drainage Improvements				

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number 12363N26Q4039 is issued as a Request for Quotation (RFQ) for Prescott National Forest Road Reconditioning.

This acquisition is set-aside for small business concerns. The applicable North American Industry Classification Standard Code is 237310. The small business size standard is \$45 Million. This acquisition is a Total Small Business Set-Aside. All responsible sources may submit a quotation which will be considered by the agency.

Offers are due May 13, 2026 at 11:00 am Mountain Standard Time to cynthia.horwitz@usda.gov

Statement of Requirement

See Statement of Work for requirements.

Schedule of Items

See page 12 of Statement of Work and submit pricing in table.

Technical Data -

Technical data and supporting documentation associated with this solicitation are available through the following sources:

Attached Statement of Work**Project Location**

Project location and directions are listed in Statement of Work.

Definitization of Equitable Adjustments for Change Orders - Firm-Fixed Priced contracts will require modification and funding if changes are required.

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference**Feb 1998**

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
☐ Alternate I (Nov 2025) of 52.212-4

This is a commercial construction acquisition. FAR 52.212-4 is amended as follows:

(b) *Inspection/Acceptance*. Inspection and Acceptance will be conducted in accordance with FAR 52.246-12, Inspection of Construction (Aug 1996).

(d) *Changes*. Changes will be handled in accordance with the following FAR clause(s):

- ☒ FAR 52.243-4, Changes (Nov 2025)
- ☐ FAR 52.243-5, Changes and Changed Conditions (Nov 2025)
- 52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
- 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
- 52.222-50 Combating Trafficking in Persons (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.222-50
- 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
- 52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
- 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
- 52.233-3 Protest After Award (Sep 2025)
- 52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
- 52.240-91 Security Prohibitions and Exclusions (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.240-91
- 52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)
- ☒ 52.209-6 Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
- ☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
 - ☐ Alternate III (Nov 2025) of 52.219-9.
 - ☐ Alternate IV (Nov 2025) of 52.219-9
- ☒ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
- ☒ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☐ 52.222-3 Convict Labor (June 2003)

- ☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☐ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☐ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)
- ☐ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
 - ☐ Alternate I (May 2008) of 52.223-9
- ☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services
- ☐ 52.224-3 Privacy Training (Jan 2017)
 - ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.225-3.
 - ☐ Alternate III (Nov 2025) of 52.225-3.
 - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)

- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☐ 52.240-92 Security Requirements (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.240-92
- ☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
 - ☐ Alternate I (Apr 2023) of 52.247-64.
 - ☐ Alternate II (Nov 2021) of 52.247-64

The Contractor shall comply with the following FAR Clauses for Commercial Construction.

- 52.222-6 Construction Wage Rate Requirements
- 52.222-7 Withholding of Funds
- 52.222-8 Payrolls and Basic Records
- 52.222-9 Apprentices and Trainees
- 52.222-10 Compliance with Copeland Act Requirements
- 52.222-11 Subcontracts (Labor Standards)
- 52.222-12 Contract Termination-Debarment
- 52.222-14 Disputes Concerning Labor Standards
- 52.222-15 Certificate of Eligibility
- 52.236-5 Material and Workmanship

The following clauses are applicable when checked:

- ☐ 52.222-30 Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Pricing Method (Aug 2018)
- ☐ 52.222-31 Construction Wage Rate Requirements-Price Adjustment (Percentage Method) (Aug 2018)
- ☐ 52.222-32 Construction Wage Rate Requirements-Price Adjustment (Actual Method) (Nov 2025)
- ☒ 52.225-9 Buy American-Construction Materials (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.25-9
- ☐ 52.225-11 Notice of Buy American Requirement-Construction Materials under Trade Agreements (Nov 2025)
 - ☐ Alternate I (Nov 2025) (of 52.225-11
 - ☐ Alternate II (Oct 2022) of 52.225-11
- ☒ 52.228-2 Additional Bond Security (Oct 1997)

- ☐ 52.228-5 Insurance-Work on Government Installation (Jan 1997)
- ☒ 52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
- ☐ 52.228-13 Alternative Payment Protections (Jul 2020)
- ☒ 52.228-14 Irrevocable Letter of Credit (Nov 2014)
- ☒ 52.228-15 Performance and Payment Bonds-Construction (Jun 2020)
- ☒ 52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee) (Feb 2021)
- ☒ 52.236-2 Differing Site Conditions (Jul 2025)
- ☒ 52.236-3 Site Investigation and Conditions Affecting the Work (Jul 2025)
- ☒ 52.236-6 Superintendent by the Contractor (Jul 2025)
- ☒ 52.236-7 Permits and Responsibilities (Jul 2025)
- ☒ 52.236-8 Other Contracts (Jul 2025)
- ☒ 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Jul 2025)
- ☒ 52.336-10 Operations and Storage Areas (Jul 2025)
- ☒ 52.236-11 Use and Possession Prior to Completion (Jul 2025)
- ☒ 52.236-12 Cleaning Up (Jul 2025)
- ☒ 52.236-13 Accident Prevention (Jul 2025)
 - ☐ Alternate I (Nov 1991) of 52.236-13
- ☐ 52.236-14 Availability and Use of Utility Services (Jul 2025)
- ☒ 52.236-15 Schedules for Construction Contracts (Jul 2025)
- ☐ 52.236-16 Quantity Surveys (Jul 2025)
 - ☐ Alternate I (Apr 1984) of 52.236-16
- ☐ 52.236-17 Layout of Work (Jul 2025)
- ☒ 52.236-21 Specifications and Drawings for Construction (Jul 2025)
 - ☒ Alternate I (Apr 1984) of 52.236-21
 - ☐ Alternate II (Apr 1984) of 52.236-21
- ☒ 52.242-14 Suspension of Work (Apr 1984)
- ☒ 52.248-3 Value Engineering (Oct 2025)
 - ☐ Alternate I (Apr 1984) of 52.248-3

Other Applicable Clauses

- 52.216-18 Ordering (Aug 2020)
- 52.216-19 Delivery – Order Limitations (Oct 1995)
- 52.216-21 Requirements (Nov 2025)
 - ☐ Alternate I (Apr 1984) of 52.216-21
- 52.216-22 Indefinite Quantity (Nov 2025)
- 52.217-6 Option for Increased Quantity (Mar 1989)
- 52.217-7 Option for Increased Quantity - Separately Priced Line Item (Mar 1989)
- 52.217-8 Option to Extend Services (Nov 1999)
 - 30 calendar days prior to contract expiration
- 52.217-9 Option to Extend the Term of the Contract (Mar 2000)

- (a) 30 Calendar days prior to contract expiration and 60 days
- (c) five years and 6 months.
- 52.232-90 Fast Payment Procedures (Nov 2025)
- 52.245-1 Government Property (Sep 2021)
 - ☐ Alternate I (Sep 2021) of 52.245-1
- 52.245-2 Government Property Installation Operation Services (Apr 2012)
- 52.245-9 Use and Charges (Apr 2012)
- 52.246-15 Certificate of Conformance (Apr 1984)
- 52.247-29 F.O.B. Origin (Feb 2006)
- 52.247-34 F.O.B. Destination (Jan 1991)

AGAR Clauses

- 452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

452.204-70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment.

(End of Clause)

452.232-71 Progress Payments for Commercial Construction Contracts (Dec 2025)

(a) *Contractor entitlement to progress payments.* The Contractor may request progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished that meets the standards of quality established under the contract, as approved by the Contracting Officer.

(b) *Computation of amounts.* Progress payments will be authorized when the payment requested is properly due in accordance with this contract; the work will be performed in accordance with the contract; and there has been no impairment or diminution of the Government's security under this contract. The Contracting Officer may authorize consideration of:

(3) Materials delivered on site and preparatory work;

(4) Materials delivered to the Contractor at locations other than the site, if:

- i. Specifically authorized by the contract; and
- ii. The Contractor provides satisfactory evidence of title and intended use in the contract.

(c) *Contractor request for progress payments.* The Contractor's request for progress payments shall include the following:

- (1) An itemization of the amounts requested, related to the various elements of work required by the contract;
- (2) A listing of the amount included for work performed by each subcontractor;
- (3) A listing of the total amount of each subcontract;
- (4) A listing of the amounts previously paid to each subcontractor; and
- (5) Additional supporting data in a form and detail required by the Contracting Officer.

(d) *Contractor Certification.* Each request for progress payment shall be accompanied by the following certification:

I hereby certify, to the best of my knowledge and belief, that—

- (1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;
- (2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;
- (3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and
- (4) This certification is not to be construed as final acceptance of a subcontractor's performance.

_____(name)
 _____(title)
 _____(date)

(e) *Access for verification of payment entitlement.* To verify the Contractor's entitlement to progress payments under this contract, the Contractor shall provide the Government, upon request and during normal business hours, access to the following:

- (1) Records and Documentation:
 - (i) Certified progress payment requests and supporting documentation;
 - (ii) Subcontractor and supplier invoices, payment records, and lien waivers;
 - (iii) Updated schedule of values and progress schedules;
 - (iv) Quality assurance and inspection reports;
 - (v) Payroll records, if applicable under labor provisions.
- (2) Facilities and Worksite Access:
 - (i) Physical access to the construction site for inspection of work progress;

- (ii) Access to off-site storage locations for materials billed but not yet incorporated into the work; or
- (iii) Access to any fabrication facilities where contract-related work is being performed.

- (3) Access to electronic invoicing or project management systems used to track progress and payments, if such systems are used in contract performance.

(f) *Dates for payment.* A progress payment under this clause is a contract progress payment under the Prompt Payment clause of this contract, and except as provided in paragraph (g) of this clause, approved requests shall be paid within 30 days of submittal of a proper request for payment.

(g) *Liquidation of progress payments.* Progress payments shall be liquidated by deducting from the payment of each item the total unliquidated amount of progress payments made for that separately priced unit of that line item. The liquidation amounts for each line item shall be clearly delineated in each request for progress payment submitted by the Contractor.

(h) *Security for progress payments.* In the event the Contractor fails to provide adequate security as required in this contract, no progress payment shall be made under this contract. Upon receipt of adequate security, progress payments shall be made, including all previous payments to which the Contractor is entitled, in accordance with the terms of the contract. If at any time the Contracting Officer determines that the security provided by the Contractor is insufficient, the Contractor shall promptly provide such additional security as the Contracting Officer determines necessary. In the event the Contractor fails to provide such additional security, the Contracting Officer may collect or liquidate such security that has been provided, and suspend further payments to the Contractor; the Contractor shall repay to the Government the amount of unliquidated progress payments as the Contracting Officer at his sole discretion deems repayable.

(i) *Special terms regarding termination for cause.* If this contract is terminated for cause, the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments. The Government shall be liable for no payment except as provided by the Termination for Cause paragraph of the clause at Federal Acquisition Regulation 52.212-4, Contract Terms and Conditions—Commercial Products and Commercial Services.

(j) *Reservation of rights.*

- (1) No payment, vesting of title under this clause, or other action taken by the Government under this clause shall-
 - (i) Excuse the Contractor from performance of obligations under this contract; or
 - (ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.
- (2) The Government's rights and remedies under this clause-
 - (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and
 - (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(k) *Refund of unearned amounts.* If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

- (1) Notify the Contracting Officer of such performance deficiency; and
- (2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8th day after the date of receipt of the unearned amount until-
 - (i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or
 - (ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(l) *Retainage.* If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(m) *Title, liability, and reservation of rights.* All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

- (1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or
- (2) Waiving the right of the Government to require the fulfillment of all the terms of the contract.
- (3) The Government's rights and remedies under this clause-
 - (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and
 - (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(n) *Reimbursement for bond premiums.* In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (l) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(o) *Final payment.* The Government shall pay the amount due the Contractor under this contract after-

- (1) Completion and acceptance of all work;
- (2) Presentation of a properly executed voucher; and
- (3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 ([31 U.S.C. 3727](#) and [41 U.S.C. 6305](#)).

(p) *Limitation because of undefinitized work.* Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. (End of clause)

Solicitation Information

Award Type

It is anticipated that a Firm-Fixed-Price contract will be awarded as a result of this synopsis/solicitation.

The Government reserves the right to make more than one award (multiple awards) for different line items, if, after considering the additional administrative cost to the Government of awarding and administering separate purchase orders, it is determined that the multiple awards will result in the best value to the Government. For purposes of evaluating the cost of making multiple awards, it is assumed that the administrative cost of awarding and administering a purchase order is \$500.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Period of Performance

Date of Award through 9/30/2026 – 120 days from Notice to Proceed.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the offeror representing the best value to the Government.

Offers will be reviewed for conformance to the requirements of this RFQ. Award will be made based on the Lowest Price Technically Acceptable (LPTA) offer that meets or exceeds the acceptability standards for technical factors. Failure to provide adequate information for Technical factors a & b, will result in the offer not being placed in the eligibility group of technically acceptable, which will remove the offer from further consideration. Under LPTA:

1. Evaluation factors and significant subfactors that establish the requirements of acceptability shall be set forth in the solicitation.
2. Tradeoffs are not permitted.
3. Offers are evaluated for acceptability but not ranked using non-cost/price factors.

M1.0 TECHNICAL CAPABILITY:

Technical Capability shall be submitted in the form of a statement or document that demonstrates the contractor's capability to perform the work to meet or exceed the requirements of this solicitation. To meet the Technical Capability Requirements, offers shall address the following factors:

Factor a - tools, equipment, training, and general business practices should be developed in the statement or document to satisfy an evaluation panel that you the contractor has a level of technical capability that meets or exceeds the requirements to perform this work. If the work is subcontracted, list the proposed subcontractor and their equipment available for the project.

Factors b - Provide specific information to gain a better understanding of the requirements that document and addresses your firm's experience and capability. You may provide your own drawings, illustrations, documents, or photos to support your capability to perform the work.

Specifically address the following:

1. Heavy road maintenance and drainage experience
2. Describe the road reclamation (mobile rock trimmer / crusher) equipment for the proposed work, including make, model, and cutting width

Failure to provide adequate information for Technical Capability may result in the offer being removed from the competitive range.

M2.0 PAST PERFORMANCE

Past Performance is required to be submitted for any federal procurement. List similar projects within the last 3 years that demonstrate the contractor's capability to perform the subfactors in the technical requirements. Past performance is necessary for the Contracting Officer to determine the contractor has the experience necessary to perform the work.

M3.0 PRICES:

Competitive offers will establish price reasonableness. Therefore, when contracting on a firm-fixed-price basis, comparison of the proposed prices will satisfy the requirement to perform a price analysis (cost analysis need not be performed). Contracting Officer intends to award without discussions, offerors shall provide their best prices up front. Pricing will serve as a final determining factor for award under LPTA.

Technical Approach:

The technical approach will evaluate the ability of the offeror to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements. All offerors must provide the following minimum information and documentation with their quotations to be considered responsive and have their offers evaluated:

- Ability of the offeror to meet the schedule requirements listed in the Statement of Work (SOW).
- Detailed explanation of any requirement listed in the SOW that cannot be successfully accomplished by the offeror.

Price:

The offeror shall provide pricing as requested in the Schedule of Items on page 12 of the Statement attached with this Request for Quote. Failure to propose pricing for all individual line items may result in a quotation being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Past Performance:

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

FAR 52.212-2 Evaluation - Commercial Products and Commercial Services (Nov 2025)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

- 1) Price
- 2) Technical Capability

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference

Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Questions shall be submitted via email to cynthia.horwitz@usda.gov and are due no later than May 5, 2026 at 11:00 am Pacific Time. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☒ 52.222-5 Construction Wage Requirements, Secondary Site of the Work (Nov 2025)
- ☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services—Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.225-6 Trade Agreements—Certificate (Feb 2021)
- ☐ 52.225-10 Notice of Buy American Requirement- Construction Materials (May 2014)
 - ☐ Alternate I (May 2014) of 52.225-10
- ☐ 52.225-12 Notice of Buy American Requirement-Construction Materials under Trade Agreements (May 2014)
 - ☐ Alternate I (May 2014) of 52.225-12
 - ☐ Alternate II (Nov 2023) of 52.225-12
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☒ 52.228-1 Bid Guarantee (Sep 1996)
- ☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

52.233-2 Service of Protest (Sep 2025)

AGAR Provisions

452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (2) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)

NOTICE FOR FILING AGENCY PROTESTS

United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO.

Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.

SOUTHWEST REGION 03 PRESCOTT NATIONAL FOREST

NFSR 52 (Senator Highway) Road Reconditioning and Drainage

STATEMENT OF WORK



U.S. FOREST SERVICE
Rev. 12/10/2025

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1.0 GENERAL INFORMATION

1.1 WORK SUMMARY

Work consists of reestablishing driving surface to a specified depth on native-surfaced roads (using rock milling or trimmer equipment), road reconditioning, ditch cleaning, and grade dip installation suitable for log truck hauling on portions of National Forest System Road (NFSR) 52 south of Prescott.

1.2 PROJECT LOCATION

From the Bradshaw Ranger Station (344 S. Cortez Street, Prescott, AZ), drive east onto W. Aubrey Street, then turn left onto S. Marina Street. Continue 0.1 miles, then turn right into E. Carleton Street. Drive 0.2 miles, then turn right onto S. Mt. Vernon Avenue. Continue 0.1 miles, then S. Mt. Vernon Avenue becomes S. Senator Highway after a slight left. Continue twelve (12) miles to the Poland Road and NFSR 52 (Senator Highway) intersection.

1.3 PERFORMANCE PERIOD

The performance period shall be 120 (one hundred twenty) days from Notice to Proceed. There are **NO** wildlife timing restrictions, and work may be completed year-round, weather permitting.

1.4 POINTS OF CONTACT

Contracting Officer (CO): To Be Determined

Contracting Officer's Representative (COR): To Be Determined

Inspector: To Be Determined

1.5 TRAFFIC CONTROL

The Contractor may close NFSR 52 between Poland Road and Bodie Mine Road, and Bodie Mine Road to Old Bolada Road, during the work, but not both concurrently. Contractor shall place road closure signage in accordance with the specifications and the Manual on Uniform Traffic Control Devices (MUTCD). Prior to the start of the work, the Contractor shall submit a traffic control plan that shows the placement of closure signage and shall be located at major county roads and NFSR 52 intersections, such that vehicles may turn around unimpeded. Closures require thirty (30) calendar days' notice to the Forest. The Forest will provide all necessary public announcements.

1.6 CONTRACTOR STAGING

The Contractor may stage equipment at the intersection of NFSR 52 and NFSR 67, and at any intermediate area of the closed sections of road, at the Contractor's risk. Do not create new staging areas outside of the road prism.

1.7 UTILITIES & SANITATION SERVICES

There are no utilities or sanitation services available to the Contractor. Construction water is only required for compaction as specified. Watering for dust control is not required.

1.8 ARCHEOLOGICAL SITES AND DISCOVERY

There are archeological sites in the project area. The Forest will flag all known sites prior to the beginning of work. Within flagged heritage sites, the Contractor is permitted to clean roadside and lead-out ditches and bring the excavated material back to the road for regrading and establishing drainage. Rolling grade dips are permitted to be placed. When bedrock is encountered within the road prism, the Contractor may perform road reconditioning per the scope. The Contractor is NOT permitted to excavate down or drive on areas where there is no ground disturbance. When bedrock is not encountered within the road prism, the Contractor will not perform new excavation or road conditioning scope, other than previously stated allowable work.

If previously undocumented cultural resources are encountered during ground-disturbing activities, all work must immediately cease within one hundred (100) feet until a USFS archaeologist has documented the discovery and evaluated its eligibility for the National Register of Historic Places (NRHP) in consultation with the Arizona State Historic Preservation Office (SHPO). Work must not resume in the area without authorization from the USFS. Secure the area and relocate work to another area of the project.

If the unanticipated discovery involves human remains and/or associated objects on USFS lands, all work must immediately cease within one hundred (100) feet of the discovery and the USFS must be notified immediately of the discovery. The area of the find must be clearly delineated, protected, and secured until USFS staff have been contacted and have had an opportunity to evaluate the nature and significance of the discovery. All discoveries on USFS lands will be treated in accordance with the Native American Graves Protection and Repatriation Act (PL 101-601; 25 United States Code 3001–3013), and work must not resume in this area without authorization from the USFS.

2.0 PROJECT SCOPE

2.1 GENERAL SCOPE

The Contractor shall furnish all supervision, materials, equipment and vehicles, tools, parts, labor, transportation, lodging, and miscellaneous items to recondition a portion of NFSR 52, also known as Senator Highway, in accordance with the drawings, specifications, and other attachments referenced and contained herein.

No changes to the specifications, terms, or conditions of this statement of work shall be made without the prior approval of the Contracting Officer, in writing.

NFSR 52 is approximately (14) feet wide and is designated as a single lane with turnouts.

Use all excavated material aggregate and native surface material to reestablish positive drainage at the adjacent road locations. Use excavated rock material for slope reinforcement and drainage protection. Clearing of roadside brush and vegetation, as needed for project operations, will be allowed and shall be incidental to payment for the work being performed.

Refer to the drawings for rolling grade dip and typical road section details. The Contractor shall use best practices, or as determined by the Contracting Officer's Representative, when determining the correct road section (crown, inslope, outslope) that drains water in the most practicable and sustainable method.

There are no requirements for sampling and testing. Do not perform work in muddy conditions where rutting may occur. The Contractor shall repair all areas of the work where rutting was caused by Contractor equipment, at no cost to the Government.

2.2 SPECIFIC SCOPE

2.2.1 Roadway Reconditioning

Road reconditioning shall be completed in accordance with Section 303.08 of FP-24 specifications, and includes ditch (roadside and lead-out), shoulder, roadbed, and aggregate surfacing reconditioning per 303.03, 303.04, 303.05, and 303.06 respectively. Roadway sections designated for road reconditioning do not require in-place milling or reclamation due to lack of visible oversized rock, but shall be fully reconditioning to include ditch, shoulders, inlets/outlets, scarification, shaping, watering, and compacting. When cleaning ditches, grade and blend excavated material onto road to reestablish road surface drainage profile. Existing grade dips shall be reshaped to reintroduce positive drainage.

2.2.2 Roadway Reclamation / Rock Trimmer

Road reclamation (mobile rock trimmer / crushing) shall be completed in accordance with Section 304 of FP-14, with the following exceptions:

- 100 percent of the processed material shall pass the 3-inch sieve (in lieu of 1-1/2 inch).
- Remove Section 304.04 requirement for adding crushed aggregate.

2.2.3 Harden Drainage Crossings & Rolling Grade Dips

Prepare work locations by reshaping for positive drainage, eliminating low spots that hold water. Haul, place, spread, and compact twelve (12) cubic yards of MAG Select Material at each specified drainage crossing or rolling grade dip location. The station locations are approximate only. Locations will be field staked by the COR prior to Contractor mobilization. Work includes hauling, placing, and compacting MAG Select Material, Type A. Use one (1) cubic yard at each location for outlet stabilization, and eleven (11) cubic yards for the road drainage crossing or rolling grade dip. Where larger rock is excavated at the work location, use the excavated rock for outlet stabilization in lieu of MAG Select Material.

2.3 BASE BID, NFSR 52, Poland Road to Bodie Mine Road, 4.12 Miles

Road Reconditioning	
Station	Description
0+00	NFSR 52 / Poland Road Intersection / Cattle Guard
180+96	Crooks Crossing Bridge, #52
217+37	NFSR 52 / Palace Station / Bodie Mine Road Intersection

Road Reclamation / Mobile Rock Trimmer Work	
Station	Description
0+00	NFSR 52 / Poland Road Intersection / Cattle Guard
33+71 – 34+55	Rock Trimmer / Road Reclamation (84 LF)
40+80 – 42+20	Rock Trimmer / Road Reclamation (140 LF)
118+07 – 119+24	Rock Trimmer / Road Reclamation (117 LF)
137+30 – 138+45	Rock Trimmer / Road Reclamation (115 LF)
155+33 – 156+73	Rock Trimmer / Road Reclamation (140 LF)
168+35 – 169+60	Rock Trimmer / Road Reclamation (125 LF)
175+25 – 175+75	Rock Trimmer / Road Reclamation (50 LF)
179+00 – 180+60	Rock Trimmer / Road Reclamation (160 LF)
183+11 – 184+00	Rock Trimmer / Road Reclamation (89 LF)
193+00 – 193+65	Rock Trimmer / Road Reclamation (65 LF)
203+00 – 204+50	Rock Trimmer / Road Reclamation (150 LF)
217+37	NFSR 52 / Palace Station / Bodie Mine Road Intersection

2.4 BASE BID, NFSR 52, Bodie Mine Road to Old Bolada Road, 3.73 Miles

Road Reconditioning	
Station	Description
217+37	NFSR 52 / Palace Station / Bodie Mine Road Intersection
414+39	NFSR 52 / Old Bolada Road (CR-177) Intersection

Road Reclamation / Mobile Rock Trimmer Work	
Station	Description
217+37	NFSR 52 / Palace Station / Bodie Mine Road Intersection
231+72 – 235+35	Rock Trimmer / Road Reclamation (363 LF)
238+19 – 240+61	Rock Trimmer / Road Reclamation (242 LF)
233+10 – 234+87	Rock Trimmer / Road Reclamation (177 LF)
34+547 – 349+10	Rock Trimmer / Road Reclamation (363 LF)
358+30 – 361+70	Rock Trimmer / Road Reclamation (340 LF)
365+90 – 367+70	Rock Trimmer / Road Reclamation (180 LF)
368+90 – 371+87	Rock Trimmer / Road Reclamation (297 LF)
379+90 – 381+60	Rock Trimmer / Road Reclamation (170 LF)
414+39	NFSR 52 / Old Bolada Road (CR-177) Intersection

Harden Drainage Crossings & Rolling Grade Dips	
Station	Description
217+37	NFSR 52 / Palace Station / Bodie Mine Road Intersection
248+16	Harden Drainage Crossing / Rolling Grade Dip, 12CY
258+72	Harden Drainage Crossing / Rolling Grade Dip, 12CY
269+28	Harden Drainage Crossing / Rolling Grade Dip, 12CY
274+56	Harden Drainage Crossing / Rolling Grade Dip, 12CY
285+12	Harden Drainage Crossing / Rolling Grade Dip, 12CY
287+76	Harden Drainage Crossing / Rolling Grade Dip, 12CY
290+40	Harden Drainage Crossing / Rolling Grade Dip, 12CY
295+68	Harden Drainage Crossing / Rolling Grade Dip, 12CY
300+96	Harden Drainage Crossing / Rolling Grade Dip, 12CY
303+60	Harden Drainage Crossing / Rolling Grade Dip, 12CY
306+24	Harden Drainage Crossing / Rolling Grade Dip, 12CY
311+52	Harden Drainage Crossing / Rolling Grade Dip, 12CY
316+80	Harden Drainage Crossing / Rolling Grade Dip, 12CY
322+08	Harden Drainage Crossing / Rolling Grade Dip, 12CY
332+64	Harden Drainage Crossing / Rolling Grade Dip, 12CY
335+28	Harden Drainage Crossing / Rolling Grade Dip, 12CY
343+20	Harden Drainage Crossing / Rolling Grade Dip, 12CY
359+04	Harden Drainage Crossing / Rolling Grade Dip, 12CY
369+60	Harden Drainage Crossing / Rolling Grade Dip, 12CY
427+68	NFSR 52 / Old Bolada Road (CR-177) Intersection

Estimated Quantities:

- Work Locations – 19 EA
- Select MAG Material – 228 CY

2.5 OPTION BID, NFSR 52, Poland Road to Bodie Mine Road, Harden Drainage Crossings / Rolling Grade Dips

Harden Drainage Crossings & Rolling Grade Dips	
Station	Description
0+00	NFSR 52 / Poland Road Intersection / Cattle Guard
66+70	Harden Drainage Crossing / Rolling Grade Dip, 12CY
91+05	Harden Drainage Crossing / Rolling Grade Dip, 12CY
98+01	Harden Drainage Crossing / Rolling Grade Dip, 12CY
105+78	Harden Drainage Crossing / Rolling Grade Dip, 12CY
112+03	Harden Drainage Crossing / Rolling Grade Dip, 12CY
113+03	Harden Drainage Crossing / Rolling Grade Dip, 12CY
118+02	Harden Drainage Crossing / Rolling Grade Dip, 12CY
125+14	Harden Drainage Crossing / Rolling Grade Dip, 12CY
130+08	Harden Drainage Crossing / Rolling Grade Dip, 12CY
133+35	Harden Drainage Crossing / Rolling Grade Dip, 12CY
136+66	Harden Drainage Crossing / Rolling Grade Dip, 12CY
143+00 – 144+00	Harden Drainage Crossing / Rolling Grade Dip, 24CY
151+00	Harden Drainage Crossing / Rolling Grade Dip, 12CY
170+15	Harden Drainage Crossing / Rolling Grade Dip, 12CY
189+62	Harden Drainage Crossing / Rolling Grade Dip, 12CY
209+73	Harden Drainage Crossing / Rolling Grade Dip, 12CY
217+37	NFSR 52 / Palace Station / Bodie Mine Road Intersection

Estimated Quantities:

- Work Locations – 16 EA
- Select MAG Material – 204 CY

2.6 SCOPE ATTACHMENTS

Attachment A – Project Vicinity Map (1 page)

Attachment B – Drawings (2 sheets)

Attachment C – Forest Service Supplemental Specifications (18 pages)

Attachment D – MAG Select Material, Type A (2 pages)

Attachment E – Prescott National Forest Fire Plan (5 pages)

Attachment F – Prescott National Forest Spill Prevention Plan (3 pages)

Attachment G – Site Pictures

3.0 SCHEDULE OF ITEMS

The following descriptions summarize the work for the Schedule of Items (SOI) listed below. They are not intended to be all-inclusive of the work needed to perform each item. Such work shall be considered incidental to the task and be included in the final costs to perform the work necessary.

3.1 ABBREVIATIONS

Method of Measurement (MoM)		Pay Units	
AQ	Actual Quantity	CY	Cubic Yards
EQ	Estimated Quantity	EA	Each
LSQ	Lump Sum Quantity	LS	Lump Sum
		MI	Miles

3.2. DEFINITIONS

Contract (Actual) Quantity

The quantity to be paid is the quantity listed in the bid schedule. The contract quantity will be adjusted for authorized changes that affect the quantity or for errors made in computing this quantity. If there is evidence that a quantity specified as a contract quantity is incorrect, submit calculations, drawings, or other evidence indicating why the quantity is in error and request in writing that the quantity be adjusted.

Estimated (Design) Quantity

If the quantity of a unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due to the variation above 115 percent or below 85 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment to extend the completion date as, in the judgement of the Contracting Officer, is justified.

Lump Sum Quantity

The bid amount is complete payment for all work described in the contract and necessary to complete the work for that pay item. The quantity is designated as "All". Estimated quantities of lump sum work shown in the contract are approximate.

3.3 SCHEDULE OF ITEMS

BASE BID LINE ITEMS						
Pay Item Number	Pay Item Description	Method of Measure	Quantity	Pay Unit	Unit Price	Total Cost
<i>NFSR 52, Poland Road to Bodie Mine Road, 4.12 Miles</i>						
151 (01)	Mobilization	AQ	1	LS	\$	\$
303 (01)	Road Reconditioning	AQ	4.12	MI	\$	\$
304 (01)	Road Reclamation / Rock Trimmer	EQ	1235	LF	\$	\$
<i>NFSR 52, Bodie Mine Road to Old Bolada Road, 3.73 Miles</i>						
204 (01)	Harden Drainage Crossing / Rolling Grade Dip	AQ	19	EA	\$	\$
303 (02)	Road Reconditioning	EQ	3.73	MI	\$	\$
304 (02)	Road Reclamation / Rock Trimmer	EQ	2132	LF	\$	\$
BASE BID LINE-ITEM TOTAL						\$

OPTION BID LINE ITEMS						
Pay Item Number	Pay Item Description	Method of Measure	Quantity	Pay Unit	Unit Price	Total Cost
<i>NFSR 52, Poland Road to Bodie Mine Road, Harden Drainage Crossings / Rolling Grade Dips</i>						
204 (02)	Harden Drainage Crossing / Rolling Grade Dip	AQ	16	EA	\$	\$
OPTION BID LINE-ITEM TOTAL						\$

4.0 SPECIFICATIONS

4.1 FP-14 U.S. CUSTOMARY UNITS, 2014

The *Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects* (FP-14 U.S. Customary Units), 2014 are included by reference. The requirements contained in these specifications are hereby made a part of this solicitation and any resultant contract. References made to other sections within those listed are incorporated by reference.

The 700-page book entitled “Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects (FP-14 U.S. Customary Units), is available from:

<https://highways.dot.gov/federal-lands/specs/fp-14>

Items listed for payment are in the schedule of items. All other items, regardless of payment procedures listed in FP-14, are considered incidental to the work, and shall be included in the schedule of items, as necessary.

4.2 FOREST SERVICE SUPPLEMENTAL SPECIFICATIONS

Forest Service Supplemental Specifications (FSSS) add to, delete from, or modify the FP-14 specifications. FSSS are applicable to this project and are included in their entirety.

5.0FP-14 SPECIFICATIONS (BY REFERENCE)

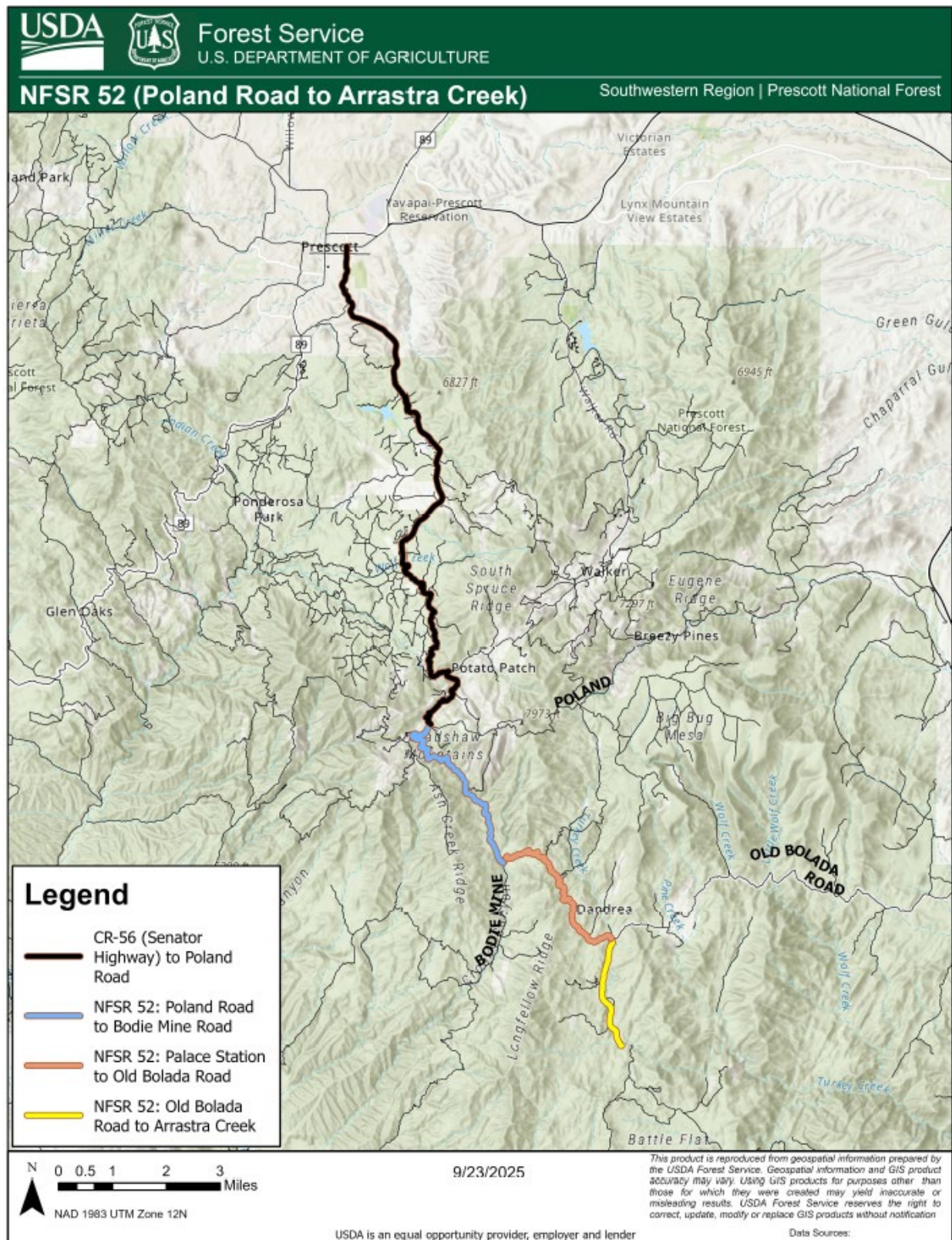
SECTION NUMBER	TITLE
Division 100	GENERAL REQUIREMENTS
101	TERMS, FORMAT, AND DEFINITIONS
102	BID, AWARD, AND EXECUTION OF CONTRACT
103	SCOPE OF WORK
104	CONTROL OF WORK
105	CONTROL OF MATERIAL
106	ACCEPTANCE OF WORK
107	LEGAL RELATIONS AND RESPONSIBILITY TO THE PUBLIC
108	PROSECUTION AND PROGRESS
109	MEASUREMENT AND PAYMENT
Division 150	PROJECT REQUIREMENTS
151	MOBILIZATION
156	PUBLIC TRAFFIC
Division 200	EARTHWORK
204	EXCAVATION AND EMBANKMENT
Division 300	AGGREGATE AND BASE COURSES
301	UNTREATED AGGREGATE COURSES
303	ROAD RECONDITIONING
304	FULL DEPTH RECLAMATION

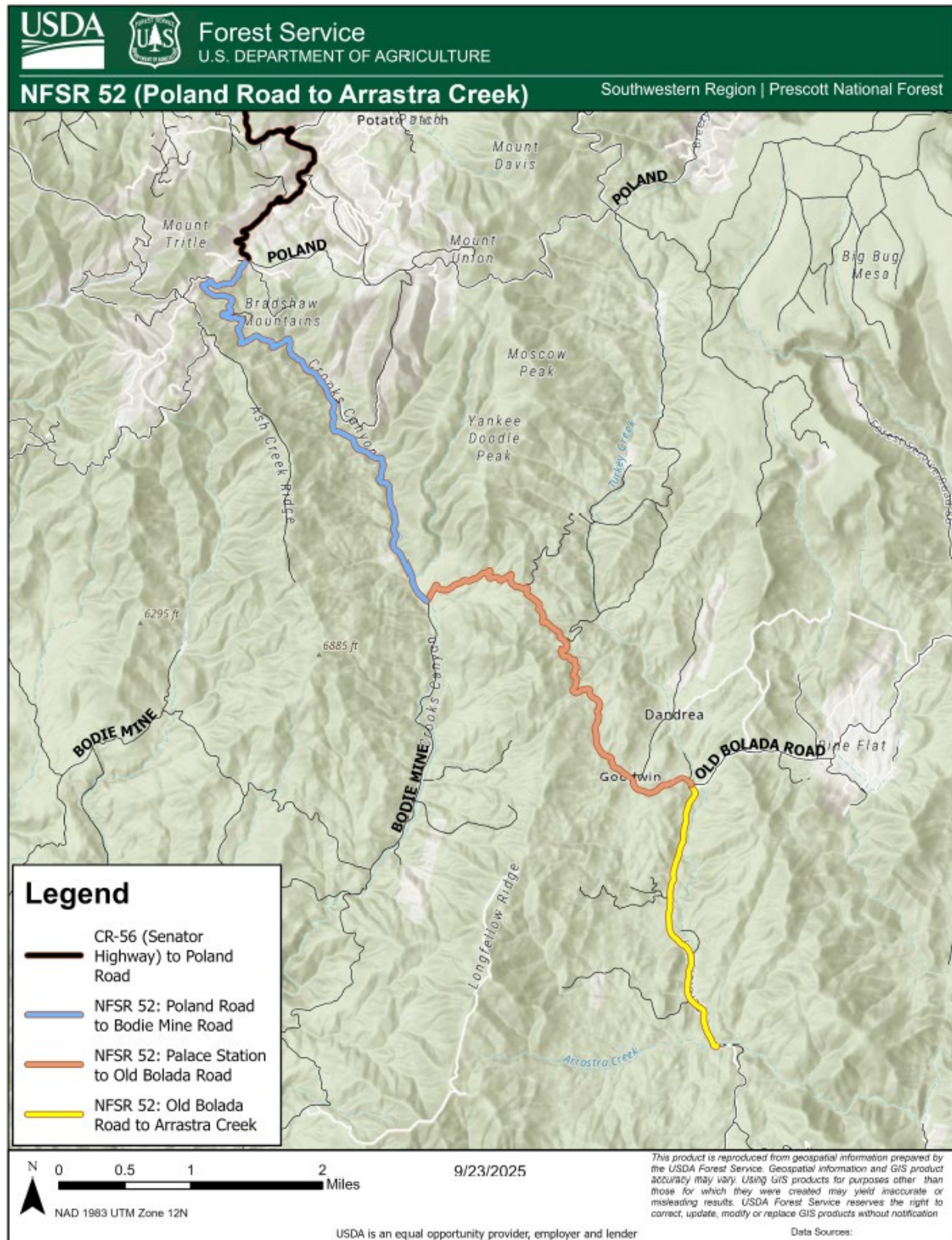
6.0 SITE SUPERVISION, QUALITY CONTROL, AND SAFETY

The Contractor shall provide an OSHA 30-HR certified safety inspector, a site superintendent, quality control representative, and traffic control supervisor during construction activities.

Contractor may elect to have all (traffic) safety, superintendent, and quality control duties under the supervision of one individual, so long as the individual is qualified and certified to meet the requirements.

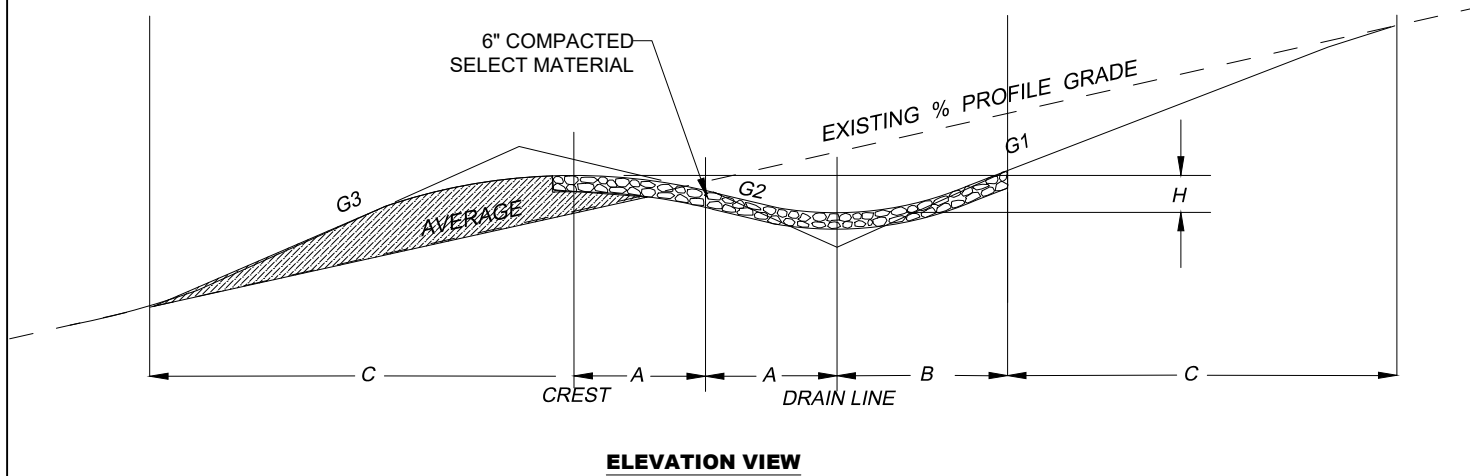
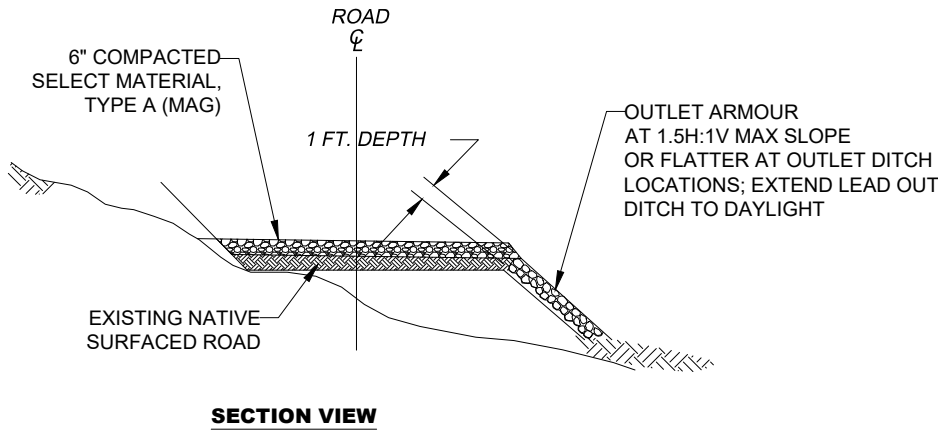
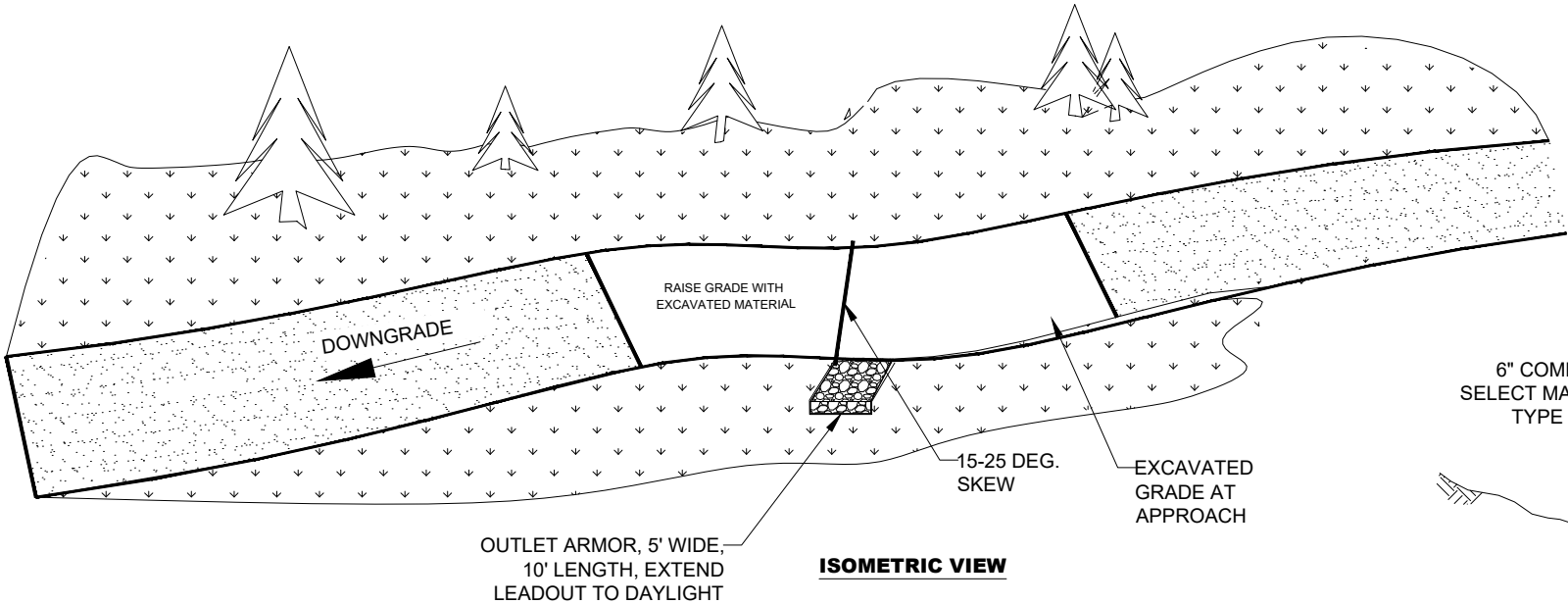
ATTACHMENT A – PROJECT VICINITY MAP





ATTACHMENT B – DRAWINGS

9/23/25 09:27 RICHARD.POLANCO C:\USERS\RICHARD.POLANCO\BOX\7000_ENGINEERING\GT100_ENGINEERING\OPERATIONS\WORKING\FOLDERS_STAFF_DONOTDELETE\ANYTHING\RICHARD.POLANCO\PROJECTS_WORKING\WORKING - NFSR 52 RECONDITIONING\WORKING FILES\SENATOR_DETAILS.DWG;



ROLLING GRADE DIP NOTES

1. THE CROSS SLOPE OF THE ROADBED SHALL BE MAINTAINED THROUGH THE DIP.
2. THE DRAIN LINE SHALL BE 20° TO 35° FROM PERPENDICULAR TO THE CENTER LINE OF THE ROADBED.
3. CONSTRUCT ROLLING DIPS AT LOCATIONS DESIGNATED AND STAKED BY THE U.S. FOREST SERVICE.
4. OUTLET ARMOR SHALL BE 5'W X 10'L X 6"D UNLESS OTHERWISE SPECIFIED. USE LARGEST ROCK FROM WORK EXCAVATION OR HAULED SELECT MATERIAL, WHICHEVER IS GREATER.

ROLLING DIP INFORMATION

PROFILE GRADE (%)	LENGTH (FT)			DEPTH, H (FT)		SELECT MATERIAL QUANTITIES (CY)	OUTLET QUANTITY (CY)
	A	B	C	OUTSIDE EDGE	INSIDE EDGE		
0 TO 4	6	6	10	1.50	0.80	11	1
5 TO 8	6	6	10	1.50	0.80	11	1
9 TO 12	6	6	12	1.50	0.80	11	1
13 TO 16	7	7	15	1.00	0.80	11	1
17 & OVER	7	7	20	1.00	0.80	11	1

1 ROLLING GRADE DIP
C-02 NOT TO SCALE

USDA

FOREST SERVICE

U.S. DEPARTMENT OF AGRICULTURE

United States Department of Agriculture
Forest Service

R03
SOUTHWESTERN REGION

STAMPS, LOGOS, AND SEALS		
4		
3		
2		
1		
NO.	REVISION / ISSUE	DATE

PROJECT NAME

NFSR 52 ROAD RECLAMATION & RECONDITIONING

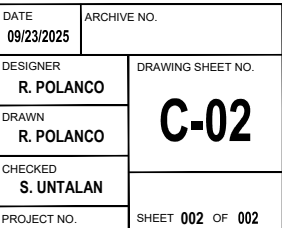
PRESCOTT NATIONAL FOREST

BRADSHAW RANGER DISTRICT

DRAWING TITLE

DRAINAGE CROSSING / ROLLING GRADE DIP DETAILS

DATE 09/23/2025	ARCHIVE NO.
DESIGNER R. POLANCO	DRAWING SHEET NO. C-01
DRAWN R. POLANCO	
CHECKED S. UNTALAN	
PROJECT NO.	SHEET 001 OF 002



ATTACHMENT C – FSSS

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Preface

Preface_wo_03_23_2021

Delete all but the first paragraph and add the following:

The Forest Service, US Department of Agriculture has adopted FP-14 for construction of National Forest System Roads.

101 - Terms, Format, and Definitions

101.01_National_11_9_2016

Add the following paragraph to Subsection 101.01:

101.01 Meaning of Terms.

Delete all references to the TAR (Transportation Acquisition Regulations) in the specifications.

101.03_National_11_9_2016

Add the following to Subsection 101.03:

101.03 Abbreviations.

(a) Acronyms.

AGAR — Agriculture Acquisition Regulations

AFPA — American Forest and Paper Association

FSAR — Forest Service Acquisition Regulations

MSHA — Mine Safety and Health Administration

NESC — National Electrical Safety Code

WCLIB — West Coast Lumber Inspection Bureau

(f) Miscellaneous unit abbreviations.

MP	—	milepost	location
----	---	----------	----------

ppm	—	parts per million	volume
-----	---	-------------------	--------

STA		station	location
-----	--	---------	----------

101.04_National_1_22_2020

Make the following changes to Subsection 101.04:

101.04 Definitions.

Delete these definitions and replace the following:

Bid Schedule — The Schedule of Items.

Bridge — A structure, including supports, erected over a depression or an obstruction such as water along a road, a trail, or a railway and having a deck for carrying traffic or other loads.

Contractor — The individual or legal entity contracting with the Government for performance of prescribed work. In a timber sale contract, the contractor is the “Purchaser”.

Culvert — Any structure with a bottom, regardless of fill depth, depth of invert burial, or presence of horizontal driving surface, or any bottomless (natural channel) structure with footings that will not have wheel loads in direct contact with the top of the structure.

Drawings — (Public Works Contracts) Design sheets or fabrication, erection, or construction details submitted to the CO by the Contractor according to FAR Clause 52.236-21 Specifications and Drawings for Construction. Also refers to submissions and submittals.

Notice to Proceed — (Public Works Contracts) Written notice to the Contractor to begin the contract work.

Right-of-Way — A general term denoting (1) the privilege to pass over land in some particular line (including easement, lease, permit, or license to occupy, use, or traverse public or private lands), or (2) Real property necessary for the project, including roadway, buffer areas, access, and drainage areas.

Solicitation—(Public Works Contracts) The complete assembly of documents (whether attached or incorporated by reference) furnished to prospective bidders.

Add the following definitions:

Adjustment in Contract Price — “Equitable adjustment,” as used in the Federal Acquisition Regulations, or “construction cost adjustment,” as used in the Timber Sale Contract, as applicable.

Change — “Change” means “change order” as used in the Federal Acquisition Regulations, or “design change” as used in the Timber Sale Contract.

Forest Service — The United States of America, acting through the Forest Service, U.S. Department of Agriculture.

Neat Line — A line defining the proposed or specified limits of an excavation or structure.

Pioneer Road — Temporary construction access built along the route of the project.

Purchaser — The individual, partnership, joint venture, or corporation contracting with the Government under the terms of a Timber Sale Contract and acting independently or through agents, employees, or subcontractors.

Protected Streamcourse — A drainage shown on the plans or timber sale area map that requires designated mitigation measures.

Road Order — An order affecting and controlling traffic on roads under Forest Service jurisdiction. Road Orders are issued by a designated Forest Officer under the authorities of 36 CFR, part 260.

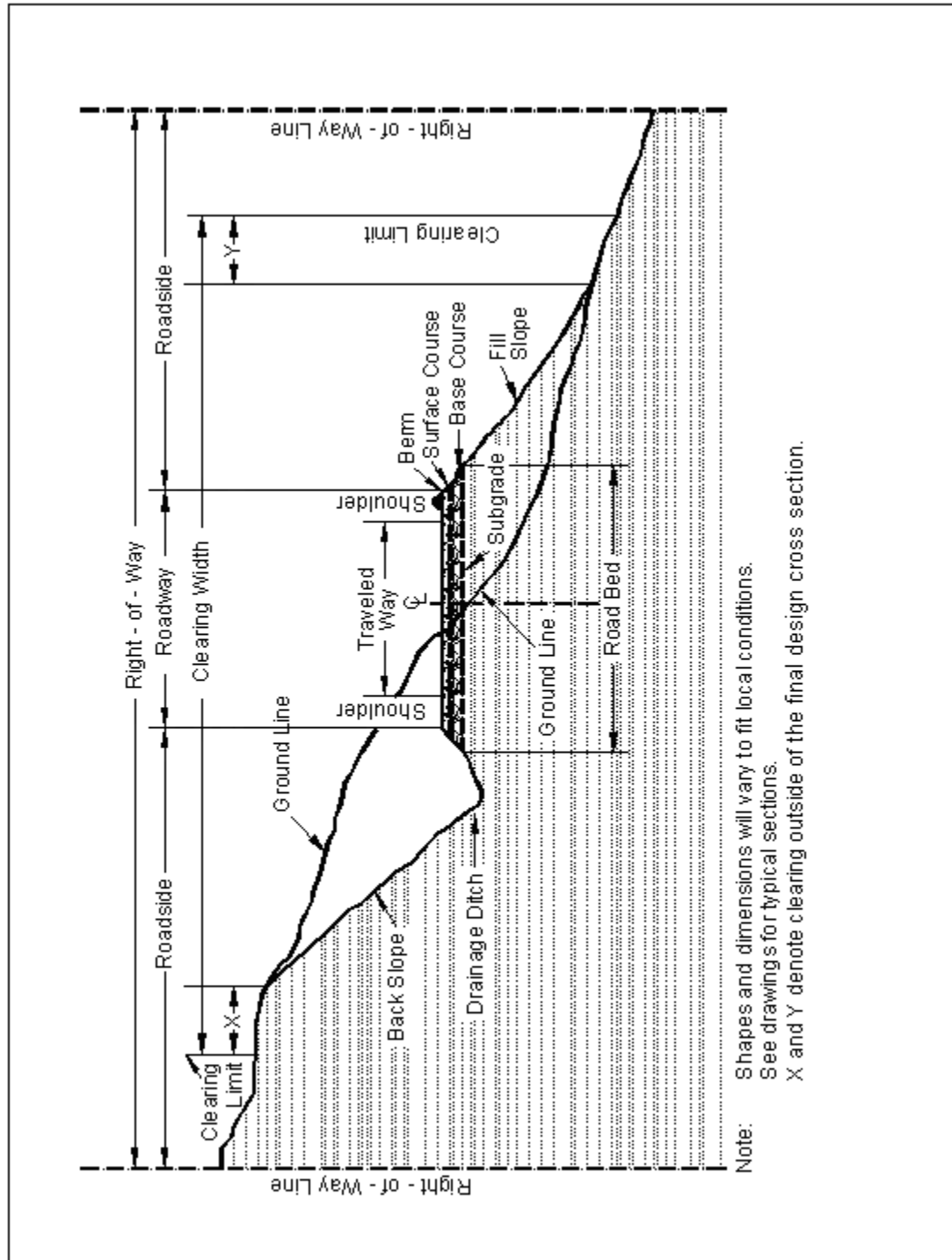
Shop Drawings — (Timber and Stewardship Contracts) Referred to as “Drawings” in FP-14, include drawings, diagrams, layouts, schematics, descriptive literature, illustrations, lists or tables, performance and test data, and similar materials furnished by Purchaser to explain in detail specific portions of the work required by the contract.

Utilization Standards —

The minimum size and percent soundness of trees described in Public Works contract specifications or Timber Sale and IRTC contract provisions to determine merchantable timber.

Add Figure 101-1—Illustration of road structure terms:

Figure 101-1—Illustration of road structure terms.



102 - Bid, Award, and Execution of Contract

102.00_National_11_9_2016

Delete Section 102 in its entirety.

Delete Section 102.

103 - Scope of Work

103.00_National_11_9_2016

Delete all of Section 103 except Subsection 103.01 Intent of Contract.

Delete Subsections 103.02, 103.03, 103.04, 103.05.

104 - Control of Work

104.00_National_11_9_2016

Delete Subsections 104.01, 104.02, and 104.04.

Delete Subsections 104.01, 104.02, 104.04.

104.06_National_11_9_2016

Add the following to Subsection 104.06:

104.06 Use of Roads by Contractor.

The Contractor is authorized to use roads under the jurisdiction of the Forest Service for all activities necessary to complete this contract, subject to the limitations and authorizations designated in the Road Order(s) or described in the contract, when such use will not damage the roads or national forest resources, and when traffic can be accommodated safely.

105 - Control of Material

105.05_National_6_29_2020

105.05 Use of Material Found in the Work.

Delete 105.05 (a) and (b) and the last sentence of the second paragraph and substitute the following:

Materials produced or processed from Government lands in excess of the quantities required for performance of this contract are the property of the Government. Place excess material safely at government-approved location, at no additional cost to government.

106 - Acceptance of Work

106.01_National_7_18_2017

Delete Subsection 106.01 and replace with the following:

106.01 Conformity with Contract Requirements.

Follow the requirements of FAR Clause 52.246-12 Inspection of Construction.

References to standard test methods of AASHTO, ASTM, GSA, and other recognized standard authorities refer to the methods in effect on the date of solicitation for bids.

Perform all work to the lines, grades, cross-sections, dimensions, and processes or material requirements shown on the plans or specified in the contract.

Incorporate manufactured materials into the work according to the manufacturer's recommendations or to these specifications, whichever is more strict.

Plan dimensions and contract specification values are the values to be strived for and complied with as the design values from which any deviations are allowed. Perform work and provide material that is uniform in character and reasonably close to the prescribed value or within the specified tolerance range. The purpose of a tolerance range is to accommodate occasional minor variations from the median zone that are unavoidable for practical reasons.

When standard manufactured items are specified (such as fence, wire, plates, rolled shapes, pipe conduits, etc., that are identified by gauge, unit mass, section dimensions, etc.), the identification will be considered to be nominal masses or dimensions. Unless specific contract tolerances are noted, established manufacturing tolerances will be accepted.

The Government may inspect, sample, or test all work at any time before final acceptance of the project. When the Government tests work, copies of test reports are furnished to the Contractor upon request. Government tests may or may not be performed at the work site. If Contractor testing and inspection is verified by the Government, the Contractor's results may be used by the Government to evaluate work for acceptance. Do not rely on the availability of Government test results for process control.

Acceptable work conforming to the contract will be paid for at the contract unit bid price. Four methods of determining conformity and accepting work are described in Subsections 106.02 to 106.05 inclusive. The primary method of acceptance is specified in each Section of work. However, work may be rejected at any time it is found by any of the methods not to comply with the contract.

Remove, repair, or replace work that does not conform to the contract, or to prevailing industry standards where no specific contract requirements are noted. Removing, repairing, or replacing work; providing temporary traffic control; and any other related work to accomplish conformity will be at no cost to the Government.

(a) Disputing Government test results. If the accuracy of Government test results is disputed, promptly inform the CO. If the dispute is unresolved after reasonable steps are taken to resolve the dispute, further evaluation may be obtained by written request. Include a narrative describing the dispute and a proposed resolution protocol that addresses the following:

1. Sampling method;
2. Number of samples;
3. Sample transport;
4. Test procedures;
5. Testing laboratories;
6. Reporting;
7. Estimated time and costs; and
8. Validation process.

If the evaluation requires additional sampling or testing be performed, mutually agree with the Government on witnessing procedures and on sampling and testing by a third party laboratory. Use a third party laboratory accredited by the AASHTO accreditation program. Provide proof of the laboratory's accreditation for the test procedures to be used. Do not use the same laboratory that produced the disputed Government test results or that produced the test results used as a basis for the dispute.

The CO will review the proposed resolution protocol and may modify it before final approval and execution.

The Government will use the approved resolution protocol test results to determine the validity of the disputed testing. If the Government test results are validated, the Contractor will be responsible for all costs associated with developing and performing the resolution protocol. If the Government test results are not validated, the Government will be responsible for all costs associated with developing and performing the resolution protocol. If the validity of the Government test results cannot be determined, the Contractor and Government will equally share all costs associated with developing and carrying out the resolution protocol.

(b) Alternatives to removing and replacing non-conforming work. As an alternative to removal and replacement, the Contractor may submit a written request to:

1. Have the work accepted at a reduced price; or
2. Be given permission to perform corrective measures to bring the work into conformity.

The request must contain supporting rationale and documentation. Include references or data justifying the proposal based on an evaluation of test results, effect on service life, value of material or work, quality, aesthetics, and other tangible engineering basis. The CO will determine disposition of the nonconforming work.

106.02_National_11_9_2016

Delete Subsection 106.02 and replace with the following:

106.02 Visual Inspection.

Acceptance is based on visual inspection of the work for compliance with the specific contract requirements. Use prevailing industry standards in the absence of specific contract requirements or tolerances.

107 - Legal Relations and Responsibility to the Public

107.05_National_7_18_2017

Delete Subsection 107.05.

Delete Subsection 107.05.

108 - Prosecution and Progress

108.00_National_11_9_2016

Delete Section 108 in its entirety.

Delete Section 108.

109 - Measurement and Payment

109.00_National_11_9_2016

Delete Subsections 109.06, 109.07, 109.08, and 109.09:

Delete Subsections 109.06, 109.07, 109.08, 109.09.

109.01_National_2_22_2019

Delete the third paragraph and Table 109-1 of Subsection 109.01 and replace with the following:

109.01 Measurement of Work.

Take measurements as described in Subsection 109.02 unless otherwise modified by the Measurement Subsection of the section controlling the work being performed. Table 109-1 indicates the accuracy required for quantities of the various pay units used in the Schedule of Items. Use this guide to determine the decimal placement in the final payment.

Table 109-1

Decimal Accuracy of Quantities for Final Payment

Pay Item	Level of Precision
Linear Foot	1
Exception--Timber, Steel, and concrete Piles	0.1
Station	0.1
Mile	0.01
Square Foot	0.1
Square Yard	0.1
Each	1
Acre	0.01
Gallon	1
M-Gals.	0.1
Cubic Yard	1
Exception--Structure Excavation; Sheathing Materials; Bedding, Bed Course, and Backfill Materials; Gabions;	0.1
Exception--Concrete; Masonry	0.01
Pound	1
Ton	0.1
Exception--Calcium Chloride; Sodium Chloride; Hydrated Lime; Bituminous Materials; Pavements; Bed Course Materials	0.01
Hour	0.1
MFBM	0.01

Station Yard	1
Cubic Yard Mile	1
Ton Mile	1

109.02_National_11_9_2016

Add the following sentence to Subsection 109.02(b):

109.02 Measurement Terms and Definitions.

(b) Contract quantity.

Contract quantities will be adjusted only when there are errors in the original design of 15% or more.

155 - Schedules for Construction Contracts

155.00_National_11_9_2016

Delete Section 155 in its entirety.

Delete Section 155.

ATTACHMENT D – MAG, SELECT MATERIAL, TYPE A

Uniform Standard Specifications and Details for Public Works Construction

2025 Edition



Sponsored and Distributed by the



January 2025

702.2 PHYSICAL PROPERTIES:

702.2.1 Base Material: Shall meet the physical properties listed in Table [702-1](#).

TABLE 702-1			
Sieve Analysis: Test Methods AASHTO T-27, T-11			
Sieve Size	Accumulative Percentage Passing Sieve, by Weight		
	Select Material		Aggregate Base Course
	Type A	Type B	
3 in.	100	—	—
1-½ in.	—	100	100
1 in.	—	—	90 – 100
No. 4	30 – 75	30 – 70	38 – 65
No. 8	20 – 60	20 – 60	25 – 60
No. 30	10 – 40	10 – 40	10 – 40
No. 200	0 – 12	0 – 12	3 – 12
Plasticity Index:			
Test Methods AASHTO T-89 Method A, T-90, T146 Method A			
Maximum allowable value	5	5	5
Fractured Face, One Face:			
Test Method ARIZ 212, Percent by Weight of the Material Retained on a #4 Sieve			
Minimum required value	50	50	50
Resistance to Degradation and Abrasion by the Los Angeles Abrasion Machine:			
Test Method AASHTO T-96, Percent Loss by Weight			
Maximum allowable value at 100 revolutions	10	10	10
Maximum allowable value at 500 revolutions	40	40	40

702.2.2 Acceptance: When tested for acceptance, Base material that does not meet Table [702-1](#) properties for gradation or PI may be approved at the Engineer's discretion if the R-Value is at least 70, when determined by test method AASHTO T-190 (see Table [310-1](#)).

- End of Section -

ATTACHMENT E – PNF FIRE PLAN

Prescott National Forest Fire Plan

PURPOSE

The purpose of fire restrictions is to reduce the risk of human-caused fires during periods of high fire danger and/or burning conditions. The intent of these guidelines is to provide authorized users with the information they need to ensure their operations conform to the Industrial Fire Precaution Plan in the likely event that fire restrictions are implemented during critical fire season. For the purpose of these guidelines, authorized users include any permit holder, leasee, contractor, subcontractor and other user, engaged in permitted operations on National Forest Lands.

When operating on National Forest Lands, it is incumbent on the permitted user to know the current Industrial Fire Precaution Plan and to take the appropriate actions to meet the mitigation measures in these guidelines. In addition, it is also incumbent on the authorized user to inform any and all of their subordinates (contractors, subcontractors, etc...) of these precautions and to ensure that all requirements are being met.

GENERAL FIRE PRECAUTIONARY MEASURES

COMMUNICATIONS

Authorized users shall ensure a serviceable telephone, radio-telephone or radio communication system is available to provide prompt and reliable communications between the authorized user's operations and the Forest Service in the the event of a wildland fire ignition.

In the event of a wildland fire, contact Prescott Dispatch at (928) 777-5700

The Prescott National Forest may choose to provide a handheld radio to the Vendor as government-issued property to facilitate emergency communications in areas that are known to have inadequate cell phone service. Training will be provided by the Government on the proper use of the equipment.

FIRE TOOLS

Authorized users shall furnish and maintain, in good working order, fires tools to be used only for suppressing wildland fires. Each operation shall be provided with one firefighting tool per person to equip all personnel engaged in authorized user's operations. Approved firefighting tools may include the following: pulaski; McLeod tool; long handled shovel. These tools are in addition to fire tools mounted on equipment, and inclusive of those required for the fire guard.

FIRE TOOLS ON EQUIPMENT

Passenger carrying vehicles, including light pickup trucks and all terrain vehicles, shall be equipped with one (1) long-handled round pointed shovel and one (1) ABC dry chemical fire extinguisher not less than 2 1/2 pounds capacity. Shovels and fire extinguishers shall be so mounted as to be readily reached from the ground. Each internal combustion fuel carrying piece of equipment (dumptruck, dozer, excavator, backhoe, etc...) shall be equipped with one long-handled round-pointed shovel, and one 5-pound capacity ABC dry chemical fire extinguisher.

SPARK ARRESTERS AND MUFFLERS

Authorized user will ensure that each internal combustion engine shall be equipped with a spark arrester qualified and rated under USDA Forest Service Standard (Spark Arrester Guide) 5100-1a or the latest revision of Society of Automotive Engineers "medium size engine, SAE recommended practice J350" unless it is:

- (a) Equipped with a turbine-driven exhaust supercharger such as the turbocharger. There shall be no exhaust bypass.
- (b) A multi-position engine, such as on power saws purchased after 6/30/77 which must meet the performance levels set forth in the Society of Automotive Engineers "multi-positioned small engine exhaust fire ignition standard, SAE recommended practice J335B" as now or hereafter amended. Those purchased prior to the above date shall be equipped with an approved spark arrester/muffler containing a 0.023 inch mesh screen in good condition.
- (c) A passenger carrying vehicle or light truck, or medium truck up to 40,000 GVW, used on roads and equipped with a factory designed muffler and an exhaust system in good working condition.
- (d) A heavy duty truck, such as a dump truck, or other vehicle used for commercial hauling, used only on roads and equipped with a factory designed muffler and with a vertical stack exhaust system extending above the cab.

Exhaust equipment described in this Subsection, including spark arresters and mufflers, shall be properly installed and constantly maintained in serviceable condition.

POWERED HANDTOOLS

During periods of use, each powered handtool operator shall have readily available for use, one long-handled round-pointed shovel and one chemical-pressurized ABC dry chemical fire extinguisher of not less than 8-ounce capacity by weight. Muffler, extinguisher, and shovel shall

be maintained in good working order at all times. Fueling or refueling of a powered handtool shall be done in an area which has been completely cleared of material which will carry fire.

Powered handtools shall be moved at least 10 feet from the place of fueling or refueling before starting.

GAS AND OIL STORAGE AND SERVICE AREAS

The location of equipment service areas and gas and oil storage areas shall be approved in writing by the permit administrator. All areas shall be cleared of brush, litter, grass or other flammable debris for a radius of 50 feet.

BURNING OF REFUSE

No slash or other debris, such as that resulting from clearing on right-of-way, shall be burned without the written consent of the Forest Service.

BLASTING

Use of fuses in blasting shall not be permitted. A long-handled round-pointed shovel and at least five gallons of water for fire fighting purposes shall be available at all times. A fire guard must remain on the blasting site for a minimum of one hour after blasting operations have concluded.

WELDING

An area of sufficient size but not less than a 10 foot radius shall be cleared down to mineral soil before welding operations are started. Prior to welding, authorized user shall have available a round-pointed long-handled shovel, at least 5-gallons of water, and a 5-pound fire ABC dry chemical extinguisher at each welding site. A fire guard must remain on the welding site for a minimum of one hour after welding operations have concluded.

SPECIFIC FIRE PRECAUTIONARY MEASURES

EMERGENCY FIRE PRECAUTION SCHEDULE

EMERGENCY FIRE PRECAUTION SCHEDULE	
FIRE RESTRICTION/CLOSURE "STAGE"	
"STAGED" RESTRICTION LEVELS	INDUSTRIAL FIRE PRECAUTION PLAN
NO RESTRICTIONS	A
STAGE I	B
STAGE II	C
PARTIAL/FOREST CLOSURE **	D
RED FLAG WARNING (Issued by National Weather Service)	D

**** Partial Forest Closure:**

Project areas which are outside the boundaries of the partial forest closure may continue to operate under Industrial Fire Precaution Plan “C” operating criteria as agreed upon between the Permit Administrator and Purchaser in writing.

Project areas within the boundaries of the proclaimed partial forest closure area are to operate under Industrial Fire Precaution Plan “D”.

Staged restriction levels are determined by the appropriate Forest Line Officer in consultation with the Forest Fire Management Officer and Permit Administrator. The appropriate Forest Line Officer may adjust the predicted Industrial Fire Precaution Plan for local weather conditions within a Project Area. Changes in the predicted Industrial Fire Precaution Plan shall be agreed to in writing.

INDUSTRIAL FIRE PRECAUTION PLAN – DESCRIPTION

Authorized user will restrict operations in accordance with the attached Emergency Fire Precaution Schedule:

A - Normal Fire Precautions - No fire guard required except for welding and blasting operations.

B - Normal Fire Precautions – Authorized user will provide fire guard.

C - All power equipment use as well as blasting and welding operations will shut down from 9:00 am until 8:00 pm Mountain Standard Time (10:00 am to 9:00 pm MDT). Operations on mineral soil involving activities such as road excavation, watering, grading, surfacing, rock crushing, and/or other equipment maintenance may continue. Authorized user will provide fire guard.

D - Shutdown all operations; except operations on mineral soil involving road excavation, watering, grading, gravel surfacing, and rock crushing may continue with special Forest Service permit. Blasting and welding are prohibited. Authorized user will provide fire guard.

FIRE GUARDS

To prevent, detect, and suppress wildland fire, authorized users shall provide a fire guard at each operating area where power-driven equipment and tools have been operated during the day. The fire guards shall constantly perform their duties during operating hours and for three (3) hours after the work stops for the day, when the Fire Precaution Plan is Plan “B”, “C”, or “D”. *The fire guard may perform contract work in conjunction with fire guard duties.*

A fire guard on one operating area shall satisfy the requirements on adjacent areas if the travel time with available transportation is not in excess of ten (10) minutes to any of the other areas requiring such service and provided the fire guard patrols all area where authorized user’s activities occurred.

Each fire guard shall be vigilant, able and prepared to actions to prevent, detect, and report any wildland fires and to promptly and efficiently take suppression action with available required firefighting equipment and personnel on any wildland fire that starts on project area. Each fire guard shall be equipped with a vehicle and a fire tool cache consisting of a cache box with a complement of fire tools maintained in serviceable condition *equal to the total number of personnel engaged in the user's operations*. Approved firefighting tools may include the following: Pulaski; McLeod: long handles round pointed shovel. The fire guard will also carry at least 25 gallons of water for firefighting purposes.

Weather Warnings, Watches, and Advisories

During periods of critical fire weather conditions the National Weather Service may issue fire weather watches or red flag warnings to highlight combinations of sustained high winds, low relative humidity, high temperatures and dry fuels that could result in significant fire behavior in the event of an ignition. The thresholds for Red Flag Events are established by the local National Weather Service office. Red Flag Events are categorized in the following order:

- FIRE WEATHER WATCH is issued to alert the possibility of the development of conditions that would lead to a Red Flag Warning.
- RED FLAG WARNING is issued to warn of a predicted, impending or ongoing combination of weather factors that support an increased probability of ignition and rapid fire growth.

When a Red Flag Warning is issued by the National Weather Service, all authorized user operations will adhere to Industrial Fire Precaution Plan “D” and will shut down operations until the Red Flag Warning is rescinded. It is the daily responsibility of the Vendor to be aware of fire weather watches or red flag warnings in the area they are working.

ATTACHMENT F – PNF SPILL PREVENTION PLAN

Prescott National Forest Spill Prevention and Maintenance Plan

I. Objectives and General Information

The purpose of this spill prevention plan is to protect the forest lands, water quality and the surrounding water shed areas during project activities. These general process and procedures will be followed by the contractor, the contractor's employees and sub-contractors.

II. Storage of Hazardous Materials on Project Site

To minimize accidental spillage, HAZMAT products will be stored in original or approved, regulated, plastic or metal spill-proof containers. All products that are used on site will be stored in the shade, 100 feet or more away from any stream or drainage and in spill containment bins that are large enough to hold the entire contents of the containers that are being stored.

- Less than 500 gallons total fuel will be located at the project site, this includes all types of fuel that are stored in vehicles (including the vehicle's fuel tank), all types of equipment that uses fuel, and all storage tanks/storage containers.
- All portable fuel tanks shall be double lined and stored on a thick plastic liner with earthen dam walls large enough to contain the entire amount of the fuel tank.
- Other materials will be stored in a neat and orderly manner, in appropriate containers with approved lids (or sealed), protected by water resistant covering, as needed, and shall be stored in spill containment bins large enough to hold all liquids in the event of a container breach.
- All fluids, such as oil, grease, hydraulic, brake or other fluids, shall be stored in accordance with the SDS and in self-containing spill containment bins.
- All operators will keep a log of time, day, and location of any spill of fuel or oils that may have occurred and will report the spill immediately to COR.
- All materials such as oils, fuels, grease, hydraulic fluids, human waste, food, trash, etc. will not be stored on any project after the project or phase of project is completed. These substances will only be present during the project operation.
- All materials will be removed and disposed of in the proper facilities away from forest lands when operations and or site visits are completed.
- Operators will not store any materials on any projects for any reason and for any length of unsupervised time.

III. Preventative Maintenance and Refueling

To prevent spills during operation, contractor shall only use well-maintained equipment to perform the work required during this project. When practicable, equipment maintenance will be performed offsite.

- All equipment associated with this project will be inspected for leaks, and all leaks will be

repaired prior to use at the beginning of each day.

- All equipment not used for a period two (2) hours or more shall be inspected for leaks prior to being used again, even if equipment was inspected earlier that day.
- If repairs are to be made, or if fluids are to be replenished on forest, a thick plastic liner will be placed beneath the equipment.
- When refilling fluids, a funnel will be used while pouring, and a drip pan or absorbent material will be placed under the equipment to catch any spillage from refilling operations.
- All equipment that is parked on the forest for two (2) hours or more shall have drip pans or plastic sheeting placed beneath it.
- Operators will have a copy of these measures with them at all times while operating on or visiting any of the project locations in the Prescott National Forest.

IV. Spill Contingency Plan

With the best practices in place, occasionally spills do happen, so it is imperative to have contingency plans in place. In the event of a spill the contractor shall notify the PNF Fire Dispatch center and the project COR or CO immediately, but no more than 48 hours after spill occurs and to work with the Forest HAZMAT Coordinator.

- For operations that intend to have **more** than 500 gallons of total fuel on site, the contractor must prepare a site-specific spill contingency plan, and it must be approved by the Southwest Regional Environmental Engineer prior to the commencement of any mobilization to the project site. The Contractor shall be responsible for contacting ADEQ to report the spill.
 - For operations that intend to have **less** than 500 gallons of total fuel on site, quick and correct actions are important to a hazardous material spill. A spill kit shall be supplied to all large pieces of equipment (i.e. masticators, dozers, etc..) or to a crew truck for pieces of equipment for such as chain saws, in case of accidental spillage. A spill kit should contain, 5-gallon bucket, nitrile gloves, polyethylene mats, paper towel, and polypropylene bags to contain the contaminated materials and soils, which will be disposed of off forest in a proper landfill.
1. If the spill occurs on compacted soil or on asphalt/concrete, an oil-absorbing product, such as OilDry® or Absorb®, may be applied immediately and then the Dispatch office will be notified and coordination can begin with the HAZMAT Coordinator. Once the absorbent product has absorbed the fluid that was spilt, the product will be placed into watertight buckets or bags, labeled, stored, and disposed of off federal lands and according to federal, state, or local regulations.
 2. If the leak occurs on uncompacted soil, contact PNF Fire Dispatch center immediately and coordinate the cleanup efforts with the Forest HAZMAT Coordinator. This will include:
 3. Contacting an environmental agency to conduct a soil sample to determine the material (this will be required by the landfill)
 4. Preventing the contamination from spreading by covering soil with waterproof tarps and building diversions and/or containment dams around the contamination spot until

- the soil can be properly removed from the forest
5. Excavation of the contaminated absorbent material and soil to the depth of the saturation will be removed, managed, and disposed of off federal lands and according to federal, state, or local regulations
 6. HAZMAT waste being disposed of requires special hauling licensing and proper bill of lading will be required
 7. A soil post clean up soil sample will be collected and if sample(s) come back as positive for contamination further cleanup will be required
 8. An environmental report is required from the environmental cleanup contractor.

V. Spill Reporting

A description of the spill, cause, cleanup measures, and disposal method will be documented and reported as appropriate. All spills shall be reported to the PNF Fire Dispatch center immediately or within 48 hours of an identified spill, the operator, or a designated representative, will notify the following Forest Service and state agencies as required:

- All spills shall be reported to the Prescott Fire Dispatch Center: (928) 777-5400
- For spills larger than 500 gallons, notify the Arizona Department of Environmental Quality (ADEQ): 1-800-234-5677|602-390-7894 (emergency) 602-771-2330 (non-emergency)

Specific information to be forwarded to these agencies includes the following:

- Name of operator reporting release.
- GPS coordinates of the spill
- Potential threats to public safety.
- Possibilities of release entering waterways, drainages, etc.
- Cleanup procedures implemented for spill remediation.
- Defined follow up procedures to be used to satisfy health, safety, environmental, and regulatory requirements.

ATTACHMENT G – SITE PICTURES



Station 29+58, NFSR 52



Station 118+07 – 119+24, Rock Trimmer Work



Station 151+00, NFSR 52, Drainage Crossing Needing Rock Reinforcement (Hardening)



Station 155+33 – 156+73, NFSR 52, Rock Trimmer Work



Station 155+33 – 156+73, NFSR 52, Rock Trimmer Work



Station 180+96, NFSR 52, Crooks Crossing Bridge

"General Decision Number: AZ20260049 01/02/2026

Superseded General Decision Number: AZ20250049

State: Arizona

Construction Type: Highway

County: Yavapai County in Arizona.

HIGHWAY CONSTRUCTION PROJECTS

Modification Number	Publication Date
0	01/02/2026

CARP1912-002 07/01/2024

	Rates	Fringes
Carpenter.....	\$ 35.89	14.98

ENGI0012-046 12/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR: Bulldozer.....	\$ 35.56	18.12

ENGI0012-051 12/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR: Paver/Spreader/Finish equipment (asphalt, aggregate, & concrete).....	\$ 35.56	18.12

ENGI0012-052 12/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR: Scraper.....	\$ 35.56	18.12

ENGI0012-053 12/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR: Tractor.....	\$ 35.56	18.12

ENGI0012-057 12/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR: Drill Rig/Auger.....	\$ 36.64	18.12

ENGI0012-064 12/01/2024

	Rates	Fringes
POWER EQUIPMENT OPERATOR: Bobcat/Skid Steer/Skid		

Loader.....	\$ 32.29	18.12

ENGI0012-066 12/01/2024		
	Rates	Fringes
POWER EQUIPMENT OPERATOR:		
Backhoe/Backhoe & Loader		
Combo/Track Backhoe.....	\$ 35.56	18.12

ENGI0012-067 12/01/2024		
	Rates	Fringes
POWER EQUIPMENT OPERATOR:		
Compactor/Roller.....	\$ 35.56	18.12

ENGI0012-069 12/01/2024		
	Rates	Fringes
POWER EQUIPMENT OPERATOR:		
Loader/Front End Loader.....	\$ 35.56	18.12

ENGI0012-070 12/01/2024		
	Rates	Fringes
TRUCK DRIVER		
Off Road Truck.....	\$ 35.56	18.12

ENGI0012-071 12/01/2024		
	Rates	Fringes
POWER EQUIPMENT OPERATOR:		
Crane/Derrick.....	\$ 36.64	18.12

ENGI0012-072 12/01/2024		
	Rates	Fringes
Power Equipment Operator:		
Excavator/Trackhoe		
1/2 cubic yard or smaller...	\$ 35.56	18.12
Greater than 1/2 cubic yard.	\$ 36.64	18.12

ENGI0012-074 12/01/2024		
	Rates	Fringes
POWER EQUIPMENT OPERATOR:		
Motor Grader/Blade.....	\$ 36.64	18.12

ENGI0012-075 12/01/2024		
	Rates	Fringes
POWER EQUIPMENT OPERATOR:		
Mechanic.....	\$ 37.67	18.12

LAB01184-016 06/01/2025		
	Rates	Fringes

Power Equipment Operator:

Horizontal Directional

Drill.....\$ 31.98 9.26

LAB01184-017 06/01/2025

Rates Fringes

Laborer: Fence Erector.....\$ 27.41 9.26

LAB01184-018 06/01/2025

Rates Fringes

Laborer: Grade Setter.....\$ 27.41 9.26

LAB01184-021 06/01/2025

Rates Fringes

Traffic Control.....\$ 27.41 9.26

LAB01184-025 06/01/2025

Rates Fringes

Laborer: Asphalt, Includes

Raker, Shoveler, Spreader and

Distributor.....\$ 29.91 9.26

LAB01184-033 06/01/2025

Rates Fringes

Power Equipment Operator:

Trencher.....\$ 30.88 9.26

LAB01184-039 06/01/2025

Rates Fringes

Laborer: General.....\$ 27.41 9.26

LAB01184-041 06/01/2025

Rates Fringes

Laborer: Mason Tender.....\$ 27.41 9.26

LAB01184-044 06/01/2025

Rates Fringes

Power Equipment Operator:

Forklift.....\$ 30.88 9.26

LAB01184-047 06/01/2025

Rates Fringes

Truck Driver:

Concrete.....\$ 30.88 9.26

LAB01184-048 06/01/2025

	Rates	Fringes
Truck Driver:		
Dump.....	\$ 30.88	9.26

LAB01184-049 06/01/2025		

	Rates	Fringes
Truck Driver:		
Water.....	\$ 30.88	9.26

SUAZ2023-026 11/19/2024		

	Rates	Fringes
Cement Mason/Concrete finisher...	\$ 30.09	0.00
Electrician.....	\$ 29.00	7.58
Ironworker.....	\$ 33.15	18.57
Laborer: Concrete Saw (Hand Held/Walk Behind).....	\$ 25.22	5.08
Laborer: Landscape Laborer.....	\$ 18.03	0.00
Laborer: Pipelayer.....	\$ 25.85	7.09
Painter: Pavement Marking.....	\$ 24.60	6.34
Painter: Sign and Display Erector.....	\$ 18.03	0.00
Power Equipment Operator: Boom/Crane Truck.....	\$ 43.11	10.87
Power Equipment Operator: Broom/Sweeper.....	\$ 26.47	7.26
Power Equipment Operator: Concrete Pump Truck.....	\$ 43.11	10.87
Power Equipment Operator: Concrete Screed.....	\$ 25.70	7.15
Power Equipment Operator: Field Equipment Serviceperson....	\$ 35.39	11.50
Power Equipment Operator: Grade Checker.....	\$ 29.74	13.07
Power Equipment Operator: Milling Machine.....	\$ 30.09	6.45
Power Equipment Operator: Oiler.....	\$ 31.56	10.69
Truck Driver: Oil Distributor....	\$ 29.75	8.04
Truck Driver: Sweeper.....	\$ 20.24	5.48

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

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Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Note: Executive Order 13658 generally applies to contracts subject to the Davis-Bacon Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. Executive Order 13658 does not apply to contracts subject only to the Davis-Bacon Related Acts regardless of when they were awarded. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next

number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE:

UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION

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